

EXAMINATION SCHEME

L.L.B., Semester- V

Subject wise marks allotted and corresponding credits (w.e.f-2019-20)

S. No.	Subject Code	Name of subject	Marks Allotted							Total Marks	Credit / Contact Hours per Week			Total Credits
			Theory		Internal Assignment		Practical / Viva-Voice				L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks						
1	LLB-501	Intellectual Property	80	32	20	8	0	0	100	5	1	0	6	
2	LLB-502	Environmental Law	80	32	20	8	0	0	100	5	1	0	6	
3	LLB-503	Company Law	80	32	20	8	0	0	100	5	1	0	6	
4	LLB-504	Labour Laws - I	80	32	20	8	0	0	100	5	1	0	6	
5	LLB-505	Arbitration and Conciliation law of India (Clinical - III)	80	32	0	0	20	8	100	5	0	1	6	
6	LLB-506	Human Rights Law & Practice	80	32	20	8	0	0	100	5	1	0	6	
Total			480	192	100	40	20	8	600	30	5	1	36	

L: LectureT: TutorialP: Practical

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REGISTRAR
Bhabha University, Bhopal

L.L.B. PART-III SEMESTER - V
PAPER – I INTELLECTUAL PROPERTY

UNIT – I Introduction

The meaning of intellectual property, The main forms of intellectual property : copyright, trademarks, patents and designs , Other new forms such as plant varieties and geographical indications, Introduction to the leading international concerning intellectual property rights : the Berne, Convention, Universal Copyright, Convention, the Paris Convention Trips, the World Intellectual Property Rights Organization (WIPO) and the UNESCO

UNIT – II Selected aspects of the Law of copyright in India

Historical evolution of the copyright law, Meaning of copyright , Copyright in literacy, dramatic and musical works, Copyright in sound records and cinematograph films, Ownership of copyright, Assignment and license of copyright, Copyright authorities, Aspects of copyright justice, Remedies, especially, the possibility of Anton Pillar injunctive relief in India

UNIT – III Intellectual Property in Trademarks

The rationale of protection of trademarks as (a) an aspect of commercial and (b) of consumer rights, Definition and concept of trademarks, Registration of trademark-authorities under the trademark Act, Passing off and infringement, Remedies

UNIT – IV The Law of Intellectual Property : Patents

Concepts of patents, Historical view of the patents law in India, Process of obtaining a patent : general introduction, Procedure for filling patent co-operation treaty, Prior publication or anticipation, Rights and obligations of a patentee, Compulsory Licenses, Infringement, Defenses in suit of infringement, Injunctions and related remedies

UNIT - V

Geographical indication Act, New plant culture and breeds Act

RECOMMENDED BOOKS:-

1. Cormish W.R. Intellectual Property, Patents, Trade Marks, Copy Right and Allied Rifht (1999), Asia Law House, Hyderabad
2. Sople – Managing Intellectual Property – The Strategic Imperative – PHI Learning 2011
3. Vikas Vashishth, Law and practice of Intellectual Property (1999) Bharat Law House Delhi.
4. P. Narayanan, Intellectual Property law (1999), (ed) Eastern Law House, Calcutta
5. Bibeck Debroy (ed). Intellectual Property Right (1998), Rajiv Gandhi Foundation, Delhi.
6. U.I.F. Anderfelt, International Patent Legislation and Developing Countries (1971) W.R.
7. Cornish, Intellectual Property (3rd ed) (1996) Swwet and Maxwell
8. K. Thairani, copyright: The Indian Experience (1987)
9. W.R. Cornish, parg and Materials on Intellectual Property (1999), Sweet.

L.L.B. PART-III SEMESTER - V
PAPER – II ENVIRONMENTAL LAW

UNIT – I Concept of Environment and Pollution

Environment, Meaning and concept, Pollution-Meaning and Effects of pollution, Environmental Pollution (Water, Air and Noise Pollution), Meaning and standards, Culprits and victims, Offences and penalties

UNIT – II International Historical Perspective

Stockholm conference, Rio conference, U.N. deceleration on right to development

UNIT – III Constitutional Provisions related to Environment

Constitution making – development and property oriented approach, Directive principles, (Status, role and interrelationship with fundamental rights and fundamental duties), Fundamental Duty, Judicial approach, Fundamental Rights (Rights to clean and healthy environment, Environment Vs. Development), Enforcing agencies and remedies (Courts, Tribunal, Constitutional, Statutory and judicial remedies), Emerging principles (Polluter pays: Public liability insurance, precautionary principles)

UNIT – IV Environment Protection Measures VISA VIS Environment Pollution

Protection agencies: power and functions, Protection: means and sanctions, Emerging protection through delegated legislation, Hazardous waste, Bio-medical waste, Judiciary: complex problems in administration of environment justice

UNIT - V

Greenery conservation laws, Forest conservation, Conservation agencies, Prior approval and non-forest purpose, Symbiotic relationship and tribal people, Denudation of forest: Judicial approach, Wild life, Sanctuaries and national parks, State monopoly in the sale of wild life and wild life article, Offences against wild life

Bio-diversity:

1. Legal control
2. Control of eco-unfriendly experimentation on animal, plants, seeds and microorganism.

SELECTED BIBLIOGRAPHY:-

1. Armin Resencranze, et. Al. (eds.) Environmental Law and Policy in India (2000), Oxford
2. R.B. Singh and Suresh Mishra, Environmental Law in India (1996), Concept Pub. Co.
 3. New-Delhi.
4. Venkat – Environmental Law and Policy – 2011 PHI learning
5. Kailash Thakur, Environmental Protec on Law and Policy in India (1997), Deep and Deep
 Pub. New Delhi
6. Richard L. Riverze, et. El. (eds.), environmental Law, The Economy ans sustainable
 Development (2000), Cambridge
7. Christopher D. Stone, should Trees Have Standing and other Essays on law, Moral and
 environment (1996), Oceana
1. Leelakrishnan, P. et, al. (eds.) Law and Environment (1990), Eastern Lucknow
2. Leelakrishnan, P. The Environment Law in India (1999), Bu erworths India
3. Department of Science and technology, Government of India, Report of the commi ee
 Recommending Legisla ve Measures and Administra ve Machinery for ensuring environment
 Protec on (1980) (Tiwari Commi ee Report)
10. Sengar – Environmental Law 2011 PHI Learning (with CD).

L.L.B. PART-III SEMESTER - V
PAPER – III COMPANY LAW

UNIT – I Meaning of Corporation

Theories of corporate personality, Creation and exemption of corporations

UNIT – II Forms of corporate and non-corporate organization

Corporations partnership and other association of persons, state corporations Government companies, small scale, co-operative, corporate and joint sectors

UNIT – III Law relating to companies – Public and Private – Companies Act 1956

Promoters, Need of company for development, formation of a company registration and incorporation, Memorandum of association – various clauses – alteration therein – doctrine of ultra virus, Articles of association – binding force – alteration – its relation with memorandum of association – doctrine of constructive notice and indoor management – exceptions, Prospectus – issue – liability for misstatements in lieu of prospectus, Position, Shares – general principles of allotment, statutory restrictions transfer of shares – relationship between transferor and transferee, Shareholder – who can be ? and who cannot be shareholder – modes of becoming shareholder – calls on shares – forfeiture and surrender of shares – lien on shares, Share capital – kinds – alteration and reduction of share capital – further issue of capital – conversion of loan and debentures into capital – duties of courts to protect the interest of creditors and share holders

UNIT - IV

Directors – position – appointment – qualification – vacation of office – removal – resignation – powers and duties of directors – meeting, registers, loans – remuneration of directors – role of nominee directors – companies for loss of office – managing directors and other managerial personnel, Meetings – kinds – procedure – voting, Dividends payment – capitalization – profit, Audit and accounts, Borrowing powers – powers – effect of unauthorized borrowing – charges and mortgages – investments, Debentures – meaning – fixed and floating charges – kinds of debentures share holder and debenture holder remedies for debenture holders, protection of minority rights, Protection of oppression and mismanagement – who can apply ? Powers of the company, court and of the central Government, Investigations – powers, Private companies – nature and advantages – government companies – holding and subsidiary companies, Winding up – types – by court – reason – ground – who can apply – procedure – powers of liquidator – powers of court – consequences of winding up order voluntary winding up order compulsory winding up subject to supervisions of courts – liability of past members – payment of liability preferential payment, unclaimed dividends – winding up of unregistered company.

UNIT – V Corporate Liability

Legal liability of companies – civil and criminal, Remedies against them civil, criminal and tortious – specific relief Act, writs liability under special statutes

SELECTED BIBLIOGRAPHY:-

1. Avtar Singh Indian Company Law (1999), eastern Lucknow
2. L.C.B. Gower, Principles of Modern Company Law (1997) Sweet and Maxwell, London
3. Palmer Palmer's Company law (1987), Stevens, London
4. R.R. Pennington, Company Law (1990), Butterworths
5. A. Ramiya, Guide to the companies Act, (1998), wadhwa
6. S.M. Shah Lectures on Company Law (1998), Tripathi, Bombay.

L.L.B. PART-III SEMESTER - V
PAPER – IV LABOUR LAWS – I

UNIT - I

General Introduction, Industrial jurisprudence, Labour policy in India, Industrial revolution in India, evils of industrializations, labour problems, Growth of labour legislation in India.

UNIT - II

Industrial dispute Act 1947, Short title, definition & authorities, Notice of change, Reference of certain industrial dispute to grievance settlements authorities, board, courts, tribunals, Power procedure & duties of authorities, Strike, lock out, lay, Retrenchment, Penalties.

UNIT - III

Trade Union Act 1926, Registration of trade union, Rights & liabilities of registered trade union, Regulation, Penalties & procedure.

UNIT - IV

Minimum wages Act 1948, Introduction & definition, Minimum wages; fixation & procedure, Authorities under the Act, Fixation of hours of work & wages, Claims & their determination, Cognizance of offence.

UNIT - V

Factories Act 1948, Introduction, definition, registration & licensing, The inspecting staff, health, Safety, Working hours of adult, Annual leave with wages, Penalties & provisions

SELECTED BIBLIOGRAPHY:-

1. John Bowers and Simon Honeyball, Text book on Labour Law (1996), Blackstone, London
2. Shrivastava K.D. Commentaries on payment of wages Act 1936 (1998), Eastern Lucknow
3. Shrivastava K.D. Commentaries on minimum wages Act (1948) (1998), Eastern Lucknow
4. Rao S.S. Law and Practice on minimum wages (1999), Law Publishing House, Allahabad
5. Seth D.D. Commentaries on Disputes Act 1947 (1998), Law Publishing House, Allahabad
6. Shrivastava K.D. Commentaries on factories Act 1948 (2000), Eastern Lucknow
7. R.C. Saxena Labour problems and social welfare
8. V.V. Giri labour problems in India Industries
9. O.P. Malhotra, The Law of Industrial Disputes (1998) Universal Delhi
10. S.C. Srivastava, Social Securities and labour laws pts. 5 and 6 (1985), Universal Delhi
11. S.C. Srivastava, Commentary on the Factories Act 1948 (1999) Universal Delhi
12. Padhi – Labour and Industrial law PHI learning.

L.L.B. PART-III SEMESTER - V
PAPER – V ARBITRATION AND CONCILIATION LAW OF INDIA
(CLINICAL-III)

Note :- Viva voce Examination of this paper will be conducted by a panel of two examiners out of one external examiner shall be appointed by examination committee of the concerned university and internal examiner shall be appointed by head/ Principal/ Director of institute concerned.

UNIT – I Introduction

International arbitration, Ad hoc arbitration, specialized arbitration, Statutory arbitration, International conventions – Matters that may be referred to arbitration Capacity of the parties, Forms of arbitration agreement, Mandatory contents of arbitration agreement, Validity of the agreement.

UNIT – II Domestic Arbitration

Essential, kinds, who can enter into arbitration agreement, validity, reference to arbitration, interim measures by court.

UNIT – III Arbitrational Tribunal

Appointment, challenge, jurisdiction of arbitral tribunal, powers, grounds of challenge, procedure and court assistance.

UNIT – IV Award

Rule of guidance, form and content, correction and interpretation, grounds of setting aside an award, can misconduct be a ground, incapacity of a party, invalidity of arbitration agreement, want of proper notice and hearing, beyond the scope of reference, contravention of composition and procedure, breach of confidentiality, impartiality of the arbitrator, Bar of limitation, resjudicata, consent of parties, enforcement.

UNIT – V Conciliation

Distinction between “conciliation”, “negotiation”, “Mediation” and arbitration”, appointment, statements to conciliator, interaction between conciliator and parties, communication, duty of the parties to co-operate, suggestions by parties, confidentiality, resort to judicial proceedings, costs.

BOOKS RECOMMENDED:-

1. G.K. Kwatr : The Arbitration and Conciliation law of India
2. Avtar Singh : Arbitration and Conciliation
3. Goyal : Arbitration and Conciliation act
4. अवतार सिंह : मध्यस्थ एवं सुलह अनुक्रम लिपिक विवाद एवं निपटान विधि
5. इन्द्रजीत मल्होत्रा : मध्यस्थ एवं सुलह अधिनियम 1986

L.L.B. PART-III SEMESTER - V
PAPER – VI HUMAN RIGHTS LAW & PRACTICE

UNIT-I

Historical development and concept of human right, human right in India ancient, medieval and modern concept rights, human right in western tradition, concept of natural law and natural rights, human right in legal tradition: International law and national, UN and human rights, universal declaration of human rights (1948) individual and group rights, covenant on political and civil rights(1966).

UNIT-II

Convention on economic social and cultural right (1996), convention on the elimination of all forms of discrimination against women, convention on the rights of the child.

UNIT-III

Impact and implementation of international human rights norms in India, human rights norms reflected in fundamental rights in the constitution, directive principles: legislative and administrative implementation of international human rights norms through judicial process.

UNIT-IV

Human rights and disadvantage groups, enforcement of human right in India.

UNIT-V

Role of courts: the Supreme Court, high courts and other courts, statutory commissions- human rights, women's minority and backward class.

RECOMMENDED BOOKS:-

1. S.K.Avesti and Kataria, Law relating to human rights, orient New Delhi.
2. Human rights watch women's rights watch global report on women's human rights Ermacora
3. Nowak and Treter, International human rights(1993)
4. Wallace, International human right: text & materials (1996)
5. Human rights & global diversity (2001), Frank Cass, London
6. Nirmal B.C. The Right of self Determination in International law (1995),
7. Deep and Deep P.R. Gandhi, International Human Rights Documents (1999) Universal Delhi.
8. Human Rights Covenants and Indian Law – Sharma PHI learning 2010
9. Manav Adhikaron Antarrashtriya prasamvidayan our Bharat ki Vidhi – Sharma PHI learning. Universal
- 10 Declaration of Human Rights and Indian Law – Sharma PHI Learning.